

Shyam Kumar v. Madhyanchal Vidyut Vitaran Nigam Ltd.

Allahabad High Court · Division Bench · 7 June 2018 · Writ-C No. 21123 of 2018 · **Writ dismissed; petitioner relegated to Section 127 / clause 6.8 appeal.**

HEADNOTE

Writ challenging a final electricity assessment dismissed. A provisional assessment had been made and hearing notice given. An unexhausted appeal under Section 127 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005 barred the writ.

FACTUAL SUMMARY

Shyam Kumar petitioned the Allahabad High Court to quash Madhyanchal Vidyut Vitaran Nigam Limited's final assessment dated 23 May 2018 on electricity dues. He contended that the final order had been passed without any provisional assessment. The Division Bench recorded that a provisional assessment had been made on 23 April 2018 and that notice of hearing for the final assessment had been given to him. No statutory appeal had been filed.

HOLDING-UNITS

INTERPLAY · EA2003::127

alternate-remedy-section-127-appeal

HOLDING

A writ petition challenging a final electricity assessment is not maintainable where a provisional assessment was in fact made, notice of hearing for the final assessment was given, and the consumer has not exhausted the statutory appeal under Section 127 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005. ¶ 1

FLAG The Court said the s.127/cl.6.8 appeal lay against the provisional assessment. Section 127 appeal lies against the final assessment; this petition challenged the final order dated 23.05.2018.

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Writ challenging a final electricity assessment dismissed. A provisional assessment had been made and hearing notice given. An unexhausted appeal under Section 127 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005 barred the writ. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal Writ challenging a final electricity assessment dismissed. A provisional assessment had been made and hearing notice given. An unexhausted appeal under Section 127 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005 barred the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE ELECTRICITY DUES IN THE FINAL ASSESSMENT DATED 23.05.2018

Writ dismissed for non-exhaustion of the Section 127 / clause 6.8 appeal; assessment left to the appellate authority. ¶ 1